



CHAPTER xxiv.

An Act to empower the Barmouth Urban District Council to construct sea walls promenades and other works to acquire the undertaking of the Barmouth Harbour Trustees to confer powers upon them with regard to electricity and further powers with regard to water and for other purposes. A.D. 1929.
[26th July 1929.]

WHEREAS the district of Barmouth in the county of Merioneth is an urban district within the meaning of the Local Government Act 1894 and is under the control and management of the urban district council of Barmouth (hereinafter called "the Council"):

And whereas the district is bounded on the west by the sea and in times of storm the sea encroaches upon the district and endangers the land adjacent to the sea shore:

And whereas a portion of the district is low-lying and below the level of high-water mark of ordinary spring tides and therefore unless adequately protected by sea defence works is in grave danger of being flooded in times of storm:

And whereas no effective defence works are in existence in the district which is largely dependent on the natural beach thrown up by the sea:

And whereas the district is a health resort and its prosperity as such is largely dependent upon the

A.D. 1929. — preservation and improvement of the sea front and therefore it is expedient that the Council should be empowered to make and maintain the sea wall promenade and road described in this Act :

And whereas the construction of the sea wall promenade and road under the powers of this Act will greatly benefit certain lands in the district by preventing danger from flooding or destruction by the sea and will relieve the owners thereof from the burden of expenditure for its protection and it is therefore expedient to authorise the imposition of an improvement rate on such lands towards defraying the cost of the construction of the said works :

And whereas by an Act passed in the year 1797 certain trustees were appointed to preserve the harbour of Barmouth situated within the district but by reason of diminution of revenue the said trustees are unable adequately to discharge this duty and it is expedient that the powers of the trustees should be transferred to the Council :

And whereas it is expedient that the Council should be empowered to supply electricity within the district and so much of the townships of Llanaber-is-Mynydd and Llanaber-uwch-Mynydd in the parish of Llanaber in the county of Merioneth as is within the water limits of the Council as defined by the Barmouth Local Board Act 1891 :

And whereas it is expedient to make further provision with regard to the water undertaking of the Council and to confer further powers upon them in relation to the health local government and improvement of the district :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

For the construction of Work No. 1	£
authorised by this Act - - -	20,600

For the purchase of land for and for	£	A.D. 1929.
the construction of Work No. 2		---
authorised by this Act - - -	20,000	
For the purchase of land for and for		
the construction of Work No. 3		
authorised by this Act - - -	50,000	
For the purchase of land for and for		
the construction of Work No. 4		
authorised by this Act - - -	47,700	

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act and of the lands upon which improvement rates or charges are imposed by this Act were duly deposited with the clerk of the peace for the county of Merioneth which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Barmouth Urban Short title.
District Council Act 1929.

A.D. 1929.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Works lands and improvement rate.
- Part III.—Water supply.
- Part IV.—Acquisition of harbour undertaking.
- Part V.—Electricity.
- Part VI.—Streets buildings sewers and drains.
- Part VII.—Infectious disease and sanitary.
- Part VIII.—Finance.
- Part IX.—Miscellaneous.

Incorporation of
general
Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Act) are hereby incorporated with and form part of this Act (namely):—

(1) The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Council and shall be sufficient without the addition of the sureties mentioned in that section:

(2) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and for the purposes of this Act such provision shall have effect as if the works by this Act authorised were referred to instead of “the railway” and as if high-water mark of ordinary spring tides were referred to instead of “centre of the railway.”

Interpre-
tation of
terms.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be

something in the subject or context repugnant to such A.D. 1929.
construction.

(2) In this Act unless the subject or context otherwise requires—

“The district” means urban district of Barmouth;

“The council” means the council of the district;

“The clerk” “the treasurer” “the medical officer”
“the sanitary inspector” and “the surveyor”
mean respectively the clerk the treasurer the
medical officer the sanitary inspector and the
surveyor of the district and respectively include
any person duly authorised to discharge temporarily the duties of those offices;

“The county” and “the county council” mean
respectively the administrative county of
Merioneth and the county council of that
county;

“The Act of 1888” and “the Act of 1894” mean
respectively the Local Government Act 1888
and the Local Government Act 1894;

“The Lands Clauses Acts” means the Lands
Clauses Acts as modified by the Acquisition of
Land (Assessment of Compensation) Act 1919;

“The Public Health Acts” means the Public Health
Act 1875 and the Acts amending and extending
the same;

“The Act of 1907” means the Public Health Acts
Amendment Act 1907;

“Local authority” means a local authority as
defined in section 34 (Definitions) of the Local
Loans Act 1875 and includes a standing joint
committee of a county;

“The Minister” means the Minister of Health;

“The works” means the works and improvements
in connection therewith authorised by this
Act;

“Telegraphic line” has the same meaning as in the
Telegraph Act 1878;

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“The harbour” means the harbour of Barmouth as defined by this Act;

“The tribunal” means the tribunal to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“The general rate fund” and the “general rate” mean respectively the general rate fund and the general rate of the district;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the district;

“Food” has the meaning assigned to it by section 26 (Definition of “food”) of the Sale of Food and Drugs Act 1889;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction.

PART II.

WORKS LANDS AND IMPROVEMENT RATE.

Power to
execute
works.

5. Subject to the provisions of this Act the Council may make and maintain in the lines and according to the levels shown on the deposited plans and sections the sea walls promenades road and works in the district hereinafter described.

Work No. 1 An improvement of the existing sea wall promenade and street known as Marine Parade together with a sea wall promenade protective wall street and road works commencing at a point on Marine Parade opposite to the south side of South Avenue and terminating at the south end of Min-y-Mor sea wall;

Work No. 2 An improvement of the existing sea wall and promenade known as Min-y-Mor sea wall together with a sea wall promenade protective wall street and road works commencing at the termination of Work No. 1

and terminating in line with the northern boundary of the recreation ground at a point 157 yards or thereabouts measured in a westerly direction from the centre of the Great Western Railway Company's track or railway line ;

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Work No. 3 A sea wall promenade protective wall street and road works commencing at the termination of Work No. 2 and terminating at the northern boundary of the district at the point where it is intersected by the western boundary fence of the Great Western Railway Company ;

Work No. 4 A sea wall promenade protective wall street and road works commencing at the northern end of the Barmouth Harbour quay opposite the house known as Pen-y-Cei and terminating at the commencement of Work No. 1.

Together with all necessary fences footways approaches retaining walls steps slipways sewers drains embankments railings groynes sluices culverts aprons lights works appliances and conveniences connected with or ancillary to the said works or any of them.

6. In the construction of the works authorised by this Part of this Act the Council may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding three feet either upwards or downwards :

Limits of
deviation.

Provided that no deviation either lateral or vertical shall be made below high-water mark without the consent in writing of the Board of Trade.

7.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Council may in connection with the works authorised by this Part of this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said works and may make diversions widenings or alteration of the lines or levels of any existing streets for the purpose of connecting

Subsidiary
works.

A.D. 1929. — the same with such works or any of them and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Council shall not alter divert or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to
alter steps
pipes areas
&c.

8. Within the limits of deviation shown on the deposited plans the Council may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires for the purpose of conveying water gas or electricity to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Extinction
of private
rights of
way.

9. All private rights of way over any lands which the Council are authorised by this Act to enter upon take and use shall as from the date of such entry taking or use be extinguished Provided that the Council shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Carriage-
way foot-
way sewers
and other
works.

10. Subject to the provisions of this Act the Council may cause such parts of the works authorised by this Part of this Act to be laid out for carriageway and such parts thereof for footway as they may think proper and may upon the lands acquired by or vested in them under

the powers of this Act and within the limits of deviation defined on the deposited plans construct erect and provide such vaults cellars arches sewers drains subways and other works and conveniences as they may think proper for the purposes of or in connection with the works. A.D. 1929.
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11.—(1) Subject to the provisions and for the purposes of this Act the Council may enter upon take and use all or any part of the lands and foreshore delineated on the deposited plans and described in the deposited book of reference. Acquisition of lands.

(2) No compensation shall be payable by the Council in respect of any enhancement in value of any lands which the Council are authorised to acquire under the power of this Act by reason of any works carried out or to be carried out by the Council under this Part of this Act.

12. The following provisions for the protection of the trustees of the will of William Wellington Greener deceased and the trustees of the deed of settlement dated the seventh day of May nineteen hundred made between the said William Wellington Greener of the one part and William Oliver Greener Harry Greener and Charles Edward Greener of the other part or other the owner or owners of the properties subject to the trusts of the said will and settlement (all of whom are in this section included in the expression "the owners") shall unless otherwise agreed in writing between the Council and the owners apply and have effect (that is to say):— For protection of trustees of William Wellington Greener deceased and of the Greener Family Settlement.

(1) The Council shall not enter upon take or use for the purposes of this Act any greater part of any of the said properties of the owners than shall be required for the site of the Works Nos. 1 2 3 and 4 by this Act authorised and wheresoever any of the said works or any part thereof shall be constructed upon the properties of the owners the road frontages shall be reserved to the owners :

(2) Notwithstanding anything contained in the section of this Act of which the marginal note is " Sand &c. not to be removed from seashore without licence of Council " the owners shall be

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entitled at all times to retain and exercise all such rights of user of the seashore and of digging carrying away or removing sand gravel shingle rock soil or other material as they now have from any part of the seashore abutting upon any property belonging to them.

For protection of
Corsygedol and Marine
Hotel Freehold Land
Company Limited and
Henry Dyke Dennis
and Cecil Plumbe
Smith trustees of will
of late Henry
Dennis.

13. The following provisions for the protection of the Corsygedol and Marine Hotel Freehold Land Company Limited and Henry Dyke Dennis and Cecil Plumbe Smith trustees of the will of the late Henry Dennis or other the owner or owners for the time being of the lands numbered 41 and 48 on the deposited plans (all of whom are in this section included in the expression "the owners") shall unless otherwise agreed in writing between the Council and the owners apply and have effect (that is to say) :—

- (1) The Council shall not enter upon take or use for the purposes of this Act any greater part of any of the said lands of the owners than shall be required for the site of the Work No. 4 by this Act authorised and wheresoever any of the said work or any part thereof shall be constructed upon the properties of the owners the road frontages shall be reserved to the owners :
- (2) Notwithstanding anything contained in the section of this Act of which the marginal note is "Sand &c. not to be removed from seashore without licence of Council" the owners shall be entitled at all times to retain and exercise all such rights of user of the seashore and of digging carrying away or removing sand gravel shingle rock soil or other material as they now have from any part of the seashore abutting upon any property belonging to them.

Power to
enter upon
property
for survey
and valuation.

14. The Council and their surveyors officers agents contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of

them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings. A.D. 1929.
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15. The powers of the Council for the compulsory purchase of lands for the purposes of this Part of this Act shall cease after the thirty-first day of October one thousand nine hundred and thirty-two. Period for compulsory purchase of lands.

16. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Merioneth for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Merioneth and a duplicate thereof shall also be deposited with the clerk of the parish council (or as the case may be) in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of parish council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate. Correction of errors in deposited plans and book of reference.

17. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November nineteen hundred and twenty-eight if in the opinion of the tribunal the improvement alteration or Compensation in case of recently acquired interest.

A.D. 1929. — building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Persons
under
disability
may grant
easements
&c.

18. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
acquire
easements.

19.—(1) The Council may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

20.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Council may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Acts 1890 to 1925) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

A.D. 1929.
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Retention
and disposal
of lands.

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Council in any case in which such consent would be required if this Act had not been passed.

(3) Nothing in this section contained shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions

A.D. 1929. — shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds
of sale of
surplus
lands.

21. The Council shall apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister.

Improve-
ment rate.

22. Notwithstanding anything contained in the Rating and Valuation Act 1925—

(1) For defraying part of the expenditure of the Council of and incident to the construction of the works authorised by this Part of this Act the owners for the time being of the respective lands (whether respectively occupied or unoccupied) mentioned in the first column of the following table shall throughout the respective periods during which the Council are required to pay interest upon and to provide for the repayment of money borrowed under the section of this Act of which the marginal note is "Power to borrow" for the construction of the works mentioned in the second column thereof pay to the Council on the first day of July in every year a yearly sum or rate in this Act called "the improvement rate" mentioned in the third column of the said table on the rateable value of the said lands ascertained by the valuation list for the time being in force :

(2) In the case of any land where no rateable value appears in the valuation list in respect of such land the rateable value for the purpose of this section shall be such as may be fixed by the Council but the owner shall in each case have a right of appeal to two justices of the peace against the value so fixed :

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Lands.	Works in respect of which rates are payable.	Amount of rate payable.
Owners of lands in Part I of the Fifth Schedule to this Act.	Work No. 1	Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Council for interest upon and for the repayment of money borrowed for the construction of Work No. 1 but not exceeding a rate of eight shillings in the pound.
Owners of lands in Part II of the Fifth Schedule to this Act.	Work No. 2	Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Council for interest upon and for the repayment of money borrowed for the construction of Work No. 2 but not exceeding a rate of eight shillings in the pound.
Owners of lands in Part III of the Fifth Schedule to this Act.	Work No. 3	Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Council for interest upon and for the repayment of money borrowed for the construction of Work No. 3 but not exceeding a rate of eight shillings in the pound.
Owners of lands in Part IV of the Fifth Schedule to this Act.	Work No. 4	Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Council for interest upon and for the repayment of money borrowed for the construction of Work No. 4 but not exceeding a rate of eight shillings in the pound.

Provided that the improvement rate shall not be payable by the owners of the lands mentioned in the foregoing table in respect of any period prior to the completion of the work in respect of which the rate is payable and the date of the completion of each work shall be such date as shall be certified by the surveyor :

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- (3) The improvement rate shall be a charge on the said lands and be recoverable in the same manner and with the same incidents as private improvement expenses and private improvement rates are charged and recoverable under the provisions of the Public Health Acts :
- (4) The improvement rate in respect of any lands shall be redeemable at any time by the owner liable to the payment thereof on payment by him to the Council of such capital sum as may be agreed on between the Council and such owner :
- (5) The Council shall apply every such capital sum in extinguishment of loans raised by them under the powers of this Act for the purchase of lands for and the construction of the said works and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Minister.

PART III.

WATER SUPPLY.

Amend-
ment of
existing
rates.

23. As from the thirty-first day of March one thousand nine hundred and twenty-nine section 32 of the Barmouth Local Board Act 1891 shall be read and have effect as if instead of the rates therein appearing the following rates had been enacted therein (that is to say) where the net annual value of the premises so supplied with water shall not exceed five pounds at a rate not exceeding four pence per week where such net annual value shall exceed five pounds at a rate not exceeding twenty pounds per centum per annum.

Power to
Minister to
alter rates.

24.—(1) In the event of the Minister being satisfied that the cost of labour and materials or other circumstance affecting the water undertaking of the Council has substantially altered he may if he thinks fit on the application of the Council or of a local authority having jurisdiction within the water limits or of twenty consumers living in the urban district at any time after the expiration of a period of three years from the passing

of this Act by order vary either by way of increase or decrease the rates for the supply of water authorised by the foregoing provisions of this Part of this Act. A.D. 1929.
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(2) An order under this section shall have effect as if it were an amending order made under subsection (2) of section 1 of the Water Undertakings (Modification of Charges) Act 1921.

25.—(1) The Council shall not be bound to supply with water otherwise than by measure (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse public institution hospital (whether public or private) asylum (whether public or private) sanatorium club hotel assembly hall restaurant public-house or inn or (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein or (d) any school not maintained by the local education authority. Supply of water to houses partly used for trade &c.

(2) The minimum charge for a supply of water by measure to any of the premises in this section mentioned shall in each quarter of the year be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value.

(3) The price to be charged for supply by measure shall not exceed three shillings and sixpence per thousand gallons.

26. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council. Notice to discontinue supply of water.

27. Every person who shall wilfully (without the consent of the Council) or negligently close or shut off any valve cock or other work or apparatus belonging to the Council whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Council) be liable on conviction to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any Penalty for closing valves and apparatus.

A.D. 1929. — damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for interfering with valves &c.

28. Any person being the owner or occupier of any house building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of the supply of water by the Council who shall without the authority of the Council turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Council and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Meters in streets to measure water or detect waste.

29.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Council may for the purposes of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus.

(2) Provided that the Council shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that the Council shall not without the previous consent of a railway company exercise the powers of this section in respect of any street road land footway court or passage which is the property of or maintained by such railway company but such consent shall not be unreasonably withheld.

Separate communication pipes may be required.

30.—(1) The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

(2) If the owner of any house supplied with water by the Council when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main pipe into such house the Council may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt. A.D. 1929. —

31.—(1) If it should appear to the Council that by reason of any injury to or defect in any communication pipe which the Council are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property it shall be lawful for the Council to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been ascertained the expense incurred by the Council for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. Power to Council to repair communication pipes.

(2) Provided that except in emergency the Council shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises and where the communication pipe is repairable by the owner of such house or premises to such owner not less than twenty-four hours' previous notice of their intention so to enter.

32. When several houses or parts of houses in the occupation of several persons are supplied by the Council with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer. Maintenance of common pipe.

A.D. 1929. — of the Council or other officer duly authorised in that behalf by the Council.

Opening
of ground
by persons
liable to
maintain
pipes &c.

33.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made.

Power to
remove
meters and
fittings.

34. The Council by their agents or workmen after forty-eight hours' notice in writing under the hand of the surveyor or some other officer of the Council to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Council is laid or fixed and through or in which the supply of water is from any cause other than the default of the Council discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Extension
of power
to inspect
premises.

35. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any officer of the Council may at all reasonable time between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Council in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds.

PART IV.

A.D. 1929.

ACQUISITION OF HARBOUR UNDERTAKING.

36.—(1) On the thirtieth day of April one thousand nine hundred and thirty the powers duties rights and liabilities of the trustees of the Barmouth Harbour together with all property vested in or belonging to them shall be transferred to and vested in the Council.

Vesting
harbour
under-
taking in
Council.

(2) On the day aforesaid the trustees holding office under the powers contained in an Act passed in the year one thousand seven hundred and ninety-seven intituled “An Act for repairing deepening enlarging and preserving the harbour of Barmouth in the county of Merioneth” shall cease to hold office and all provisions of the said Act relating to the appointment of trustees are hereby repealed.

(3) Any reference in such last-mentioned Act to the trustees shall be deemed to be a reference to the Council and references to the clerk treasurer or collector shall be deemed to be references to such officer or officers who shall be appointed or to whom duties shall be assigned by the Council for the purpose.

(4) The following further sections of the last-mentioned Act are also hereby repealed:—

Section 2 (Times and places for holding the meetings of trustees);

Section 6 (Penalties on persons acting as trustees if not qualified);

Section 17 (Harbour duties to be taken);

Section 19 (Vessels not to be cleared till duties paid);

Section 20 (Manner of recovering of rates);

Section 21 (Persons eluding the payment to continue chargeable);

Section 22 (Tonnage duties shall be ascertained);

Section 23 (Penalty on persons obstructing the measuring of ships or vessels);

Section 24 (Officers appointed by the said trustees to take an oath);

Section 34 (Persons destroying the works to be deemed guilty of felony);

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- Section 35 (Masters of vessels to be answerable for damage done by their crew);
- Section 37 (Penalties how to be recovered);
- Section 38 (How distresses shall be disposed of);
- Section 40 (Satisfaction for special damages);
- Section 41 (Proceedings not to be quashed for want of form);
- Section 44 (Limits of actions &c.).

Incorporation of provisions of Harbours Docks and Piers Clauses Act 1847.

37. The following sections of the Harbours Docks and Piers Clauses Act 1847 shall extend and apply to this Part of the Act as if those sections with the necessary modifications were set out in this Act (namely):—

- Section 14 (Undertakers to erect watch house and boat house for custom house officers and keep the same in repair);
- Section 15 (Penalty on undertakers neglecting to repair watch house &c.);
- Section 24 (Legal quays to be approved by the Treasury &c.);
- Section 27 (Tonnage of British registered vessels to be ascertained according to law of all other vessels according to established rules);
- Section 28 (Exemption of vessels in Her Majesty's service &c. from rates);
- Section 30 (Power to vary the rates from time to time);
- Section 44 (Recovery of tonnage rates by distraint of ship and tackle);
- Section 45 (Recovery of rates on goods);
- Section 46 (Disputes concerning rates or charges occasioned by distress to be settled by a justice in England &c.);
- Section 56 (Harbour master may remove wrecks &c.);
- Section 83 (Power to make byelaws);
- Section 86 (Notice of allowance of byelaws to be given in one or more newspapers);
- Section 87 (A copy of proposed byelaws to be open to inspection);

- | | |
|---|------------|
| Section 88 (Publication of byelaws); | A.D. 1929. |
| Section 89 (Byelaws to be binding on all parties); | — |
| Section 90 (Proof of publication of byelaws); | |
| Section 99 (Saving for Crown); | |
| Section 100 (Saving rights of the Crown as to revenue). | |

The following expressions used in the said Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

- (1) The expressions “packet boat” and “Post Office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “Post Office bag of letters” means a mail bag as defined by the same Act;
- (2) Nothing in the said Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers live stock or goods for hire.

38. As from the thirtieth day of April one thousand nine hundred and thirty the Council may demand recover and receive for the use of the harbour and the conveniences connected therewith and in respect of vessels boats persons animals fish goods matters and things mentioned in the Sixth Schedule to this Act any sums not exceeding the rate specified in that schedule. Power to levy rates.

39. The Council may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Act but so that no preference be in any case given to any person over any other person using the harbour under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act. Power to vary exemptions and compound for rates.

40.—(1) The byelaws which may from time to time be made by the Council in exercise of the power in that behalf conferred on them by section 83 of the Harbours Docks and Piers Clauses Act 1847 as applied by this Act Byelaws.

A.D. 1929. — may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has received the allowance and confirmation of the Ministry of Transport and that allowance and confirmation shall be sufficient for all purposes :

Provided that in the case of any byelaws which the said Ministry in consultation with the Board of Trade shall deem primarily to concern the interests of navigation the provisions of this section shall apply as if the said Board were substituted for the said Ministry and the allowance and confirmation of any such byelaws by the said Ministry or the Board of Trade respectively shall be sufficient evidence of compliance with the provisions of this section.

Existing
officers.

41.—(1) Subject to the provisions of this Part of this Act all or any of the persons who on the thirtieth day of April one thousand nine hundred and thirty are officers of the Trustees of Barmouth Harbour may if the Council think fit be transferred to and become officers of the Council.

(2) Every officer so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Act had not been passed and while performing analogous duties to those which he was required to perform immediately before the appointed day shall receive not less salary or remuneration than the salary or remuneration to which he would have been entitled if this Act had not been passed.

(3) The Council may distribute the business to be performed by the transferred officers in such manner as the Council may think proper and every officer shall perform such duties in relation to that business as may be directed by the Council and the Council may abolish the office of any officer.

(4) If at any time within five years after the thirtieth day of April one thousand nine hundred and thirty any transferred officer is required by the Council to perform duties which are not analogous to or which are an unreasonable addition to those which he was required to perform immediately before that day the officer may relinquish his office.

42.—(1) Every officer in office on the thirtieth day of April one thousand nine hundred and thirty who by virtue of this Part of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment or by diminution or loss of fees or salary or emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to have compensation paid to him by the Council for that pecuniary loss. .

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Compen-
sation to
existing
officers.

(2) Any transferred officer who relinquishes his office under subsection (4) of the section of this Act of which the marginal note is “Existing officers” or any officer whose services are dispensed with or whose salary is reduced within five years after the appointed day because his services are not required or his duties are diminished in consequence of this Part of the Act and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this Part of this Act.

43.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Part of this Act regard shall be had to the conditions and circumstances mentioned in subsection (1) of section 120 (Compensation to existing officers) of the Act of 1888 and the compensation shall not exceed the limit therein mentioned.

Determina-
tion of
compen-
sation.

(2) Any compensation payable under this Part of this Act to any officer shall be paid out of the general rate fund and general rate and the provisions of section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

- (a) Any reference in that section to the county council shall be construed as a reference to the Council ;
- (b) References in that section to “ the passing of this Act ” shall be construed as references to the date on which the direct pecuniary loss commences ;
- (c) The expression in subsection (1) of that section “ the Acts and rules relating to Her Majesty’s Civil Service ” shall mean the Acts and rules

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relating to Her Majesty's Civil Service which were in operation at the date of the passing of the Act of 1888;

(d) The references in subsections (4) and (6) of that section to the Treasury shall be deemed to be references to the Minister;

(e) The words " any local authority as defined by the " Local Government and other Officers' Super-
" annuation Act 1922 " shall be substituted for the words " the same or any other county council " in subsection (7) of that section.

(3) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty's forces or the forces of the allied or associated powers such period of temporary absence shall be reckoned as service Provided that in the case of an officer who after the armistice voluntarily extended his term of service in the forces no period of absence during such extension shall be so reckoned.

Council to
be a local
lighthouse
authority.

44. The Council shall within the limits of the harbour as defined in the section of this Act of which the marginal note is " Limits of harbour " be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Limits of
harbour.

45. The limits of the harbour within which the Council shall have authority and within which the powers of the harbour master may be exercised shall comprise an area from the point on the estuary of the river Mawddach known as Penmaenpool Bridge seawards up to and including an imaginary straight line extending from Llwyndu in a southerly direction to Gwastadgoed For the purpose of better identification the limits of the harbour are delineated on the plan signed by Sir Walter Raine the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which plan copies have been deposited in the Private Bill Office of the House of Commons and the Parliament Office of the House of Lords and at the offices of the Board of Trade and of the Minister of Transport with the clerk of the peace for the county of Merioneth and at the office of the Council.

PART V.

A.D. 1929.

ELECTRICITY.

46. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Part of this Act. Incorporation of Acts.

47.—(a) The area of supply for the purposes of this Act and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area described in the First Schedule to this Act. Area of supply.

(b) The Council shall within two months after the passing of this Act deposit at the office of the Electricity Commissioners an Ordnance map on a scale of not less than one inch to the mile showing the area of supply and the map shall be signed by the secretary to the Electricity Commissioners and at the office of the North Wales and South Cheshire Joint Electricity Authority.

48. The streets and parts of streets throughout which the Council are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the passing of this Act as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Act. Compulsory works.

49. Subject to the provisions incorporated in this Part of this Act the Council are specially authorised by this Act to break up the streets and parts of streets not repairable by the local authority and the railways which are respectively mentioned in the Third Schedule to this Act. Power to break up streets &c.

50. The maximum prices which may be charged by the Council as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Act. Maximum prices.

51. The following provisions shall have effect with respect to the prices to be charged by the Council for electricity supplied under this Act (that is to say):— Revision of prices so as to balance revenue and expenditure.

(1) In this section the expression “ the initial period ” means the period extending from the date on which the Council commence to supply electricity

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under this Act to the expiration of the third complete financial year after such commencement :

- (2) The Council shall at or before the expiration of the initial period and at or before the commencement of each subsequent financial year review the prices for the time being charged including the prices specified in any contracts for the time being subsisting other than any such contracts as are first referred to in subsection (4) of this section and—

(a) if in the financial year expiring or about to expire at the date of any such review the revenue was insufficient to meet all charges and expenses in respect of the undertaking under this Act; or

(b) if the Council have reason to believe that the revenue for the ensuing financial year on the basis of the prices then charged may be insufficient to meet the charges and expenses in respect of the undertaking;

shall upon such review fix such prices (within the maximum prices which may be charged under this Act) as will ensure so far as is reasonably practicable that no contribution from the general rate or any other rate will be required for the purpose of defraying any charges or expenses in respect of the undertaking for the ensuing financial year :

- (3) There shall not be made against the general rate or any other rate—

(a) in respect of electricity used by the Council for street lighting or any other lighting purpose a charge at any higher rate than that made to consumers using electricity for lighting for the like hours of supply; or

(b) in respect of electricity used by the Council for any other purpose in connection with their powers and duties as a local or sanitary authority a charge at any higher rate than that made to consumers using electricity for similar purposes and for the like hours of supply :

- (4) Nothing in this section shall require the Council to vary the price chargeable under any contract for the supply of electricity entered into by the Council for a period of not less than five years on special terms and in special circumstances not applicable to ordinary consumers where such contract makes provision for the price chargeable thereunder to be varied in accordance with variations in the cost of fuel but except as aforesaid every contract for the supply of electricity entered into or renewed by the Council shall provide that the price to be charged for electricity supplied thereunder shall be subject to adjustment under subsection (2) of this section. A.D. 1929.
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PART VI.

STREETS BUILDINGS SEWERS AND DRAINS.

52.—(1) Whenever application shall be made to the Council to approve the laying out of or notice shall be given to the Council of intention to lay out a new street (being a new street within the meaning of the byelaws of the Council with respect to new streets or of any statutory provision for the time being in force in the district with respect to the width of new streets) the Council may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Council with plans and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being in respect of the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished. Develop-
ment
scheme
may be
required in
connection
with new
streets.

(2) If after the submission of the plans and particulars referred to in subsection (1) of this section the Council shall approve the laying out of any such new street either unconditionally or subject to any modification of such plans and particulars neither the owner of the estate or lands nor his successors in title shall carry out the development of such estate or lands in

A.D. 1929. such a manner as to conflict substantially with such plans and particulars as approved and if any such owner shall offend against the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The said owner may at any time submit to the Council for their approval any alteration in the said plans and particulars and the Council may if they think fit approve such alteration.

(4) (a) Any person deeming himself aggrieved by any requirement of or by the Council under this section or by any modification required in the said plans and particulars by the Council or by any refusal on the part of the Council to approve any such alteration as aforesaid therein may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

(5) Nothing in this section shall be deemed to authorise any contravention of any byelaw or statutory provision in force in the district.

Adjust-
ment of
boundaries
of streets.

53.—(1) The Council may enter into and carry into effect agreements with any owner of lands adjoining any street within the district for the adjustment of the boundary of any such street and for such purpose may give up to such owner land including land forming part of the street in exchange for other land. For the purposes of this section the Council shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the district and if during such period of one month any four inhabitant householders of the district by themselves or their agent give notice to the Council of their intention to appeal under the provisions of this

section the Council shall not proceed with their proposals (unless the notice of appeal is withdrawn) pending a decision on or a withdrawal of the appeal. The advertisement in the newspaper shall include notice of this proviso. A.D. 1929.
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(3) Any four inhabitant householders of the district may appeal to a court of summary jurisdiction against any proposal of the Council for an adjustment of the boundaries of a street under this section within the period mentioned in subsection (2) of this section.

(4) On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(5) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(6) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it becomes necessary to alter any such telegraphic line the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration as though the Council or the owner of the adjoining land (as the case may be) were "undertakers" within the meaning of the said Act.

54.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (being a new street within the meaning of the byelaws of the Council with respect to new streets or of any statutory provision for the time being in force in the district with respect to the width of new streets) within the district are submitted to the Council for approval the Council may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be Adjust-
ment of
boundaries
of estates.

A.D. 1929. necessary or convenient for such purposes and the provisions so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Council and the respective persons interested in such estate or lands be determined on the application of the Council or any such person by an arbitrator to be appointed by the Minister and the Council may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid. Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Council.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Council may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on

such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Council may think reasonable. A.D. 1929.
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55.—(1) Where plans and sections of a new street have been deposited with and approved by the Council no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for such person except with such consent to erect the building or any fence nearer to the centre of the street than such line. No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

56.—(1) The Council may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 (Power to prescribe improvement line for widening streets) of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line. Further powers as to future line of streets.

(2) The owner may and if so required by the Council shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Council under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Council under this section the Council shall make compensation to the owner lessee and tenant of any such building or erection and to any or either of

A.D. 1929. — them for any loss or damage sustained by such owner lessee or tenant in consequence of such building or erection being pulled down set back or altered as aforesaid.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Building
line in
streets.

57.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Council by virtue of any enactments or byelaws with respect to streets and buildings in force within the district distinctly define and mark on a plan drawn to such scale as the Council may require and to be prepared and submitted by such person to the Council for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Council shall be deemed to have approved any building line unless within six weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Council may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway authority) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Council or before the expiration of the six weeks

aforesaid without their approval nor beyond or in front of the building line approved or prescribed by the Council and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings. A.D. 1929.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Council.

(5) In the event of the Council requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the Public Health (Buildings in Streets) Act 1888 the Council shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Council determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

(8) Any person deeming himself aggrieved by any requirement of or by the Council under this section may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

A.D. 1929.

As to
hoardings
and similar
structures.

58.—(1) (a) No fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street within the district—

- (i) beyond any building line prescribed by the Council in respect of the land under the provisions of any Act; or
- (ii) if there be no such line beyond any line which is enforceable by the Council for buildings under subsection (2) of section 100 of the Housing Act 1925; or
- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Council may, by notice in writing require the owner or occupier of any land which upon any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Council shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Council given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

A.D. 1929.

59.—(1) Before any person shall erect on any land within the district a retaining wall of greater height than six feet abutting on or adjacent to any street or road he shall submit to the Council plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Council.

As to
execution of
retaining
walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Council requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Council be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding twenty shillings.

60.—(1) Every person intending to erect within the district any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Council a plan and section thereof and shall comply with such regulations as the Council may prescribe for securing the stability of such stand or structure and for securing the safety of persons to be accommodated thereon.

Restric-
tion on
erection of
temporary
stands &c.

(2) Any person acting in contravention of this section or offending against any such regulation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not apply to any person who is a roundabout proprietor travelling showman or stallholder not being a pedlar or hawker.

A.D. 1929.

Fire plugs.

61. Any person who shall cover over or wilfully or negligently obstruct or interfere with the convenient access to any fire alarm fire plug or hydrant within the district or who shall remove or efface any plate or mark indicating the position of such alarm plug or hydrant shall be liable to a penalty not exceeding five pounds.

Direction
signs.

62.—(1) The Council may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the direction or the distance to towns railway stations public buildings and other places of a public character.

(2) Before putting up or painting a sign on a house building or place the Council shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Council under this section.

(3) Any person who shall wilfully and without the consent of the Council obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Council may recover the expenses of replacement and making good from such person.

Elevation
of buildings
erected on
front lands
to require
approval.

63.—(1) Where by reason of any improvement made by the Council within the district any land shall become land which adjoins or abuts upon any street the following provisions shall apply :—

(i) If the owner lessee or occupier of any such land shall construct—

(a) any door or entrance in an existing building communicating with that street; or

(b) any wall or fence by the side of that street;

he shall construct the door entrance wall or fence in such position and in accordance with such elevations as may be approved by the Council; A.D. 1929.

- (ii) If the Council within six weeks after any elevations shall have been submitted to them under this section shall have failed to notify their determination in writing to the person submitting the same the Council shall be deemed to have approved of the elevations.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Council shall make compensation to the owner of any land for any loss or damage he may suffer by reason of the setting back or bringing forward of any wall or fence under the provisions of this section.

64.—(1) If the medical officer is of opinion that any building proposed to be erected in the district would if erected—

Prevention
of obstruc-
tive build-
ings.

- (a) stop ventilation or otherwise make or conduce to make other buildings in its proximity to be in a condition unfit for human habitation or dangerous or injurious to health; or
- (b) prevent proper measures from being carried into effect for remedying any nuisance injurious to health or other evils complained of in respect of such other buildings;

he may make a representation to the Council to that effect stating that in his opinion it is inexpedient that the proposed buildings should be erected.

(2) A representation made to the Council in pursuance of this section shall be deemed to be a representation made under the provisions of subsection (1) of section 19 (Power to local authority to order obstructive buildings to be pulled down) of the Housing Act 1925 and the provisions of that section with the necessary modifications shall extend and apply accordingly.

A.D. 1929.

Erection of
buildings
to greater
height than
adjoining
building.

65.—(1) In case any building within the district is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining buildings are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised or the top of such last-mentioned building whichever may be the higher.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Dilapidated
and
neglected
buildings.

66.—(1) Where an unoccupied building within the district is ruinous or so far dilapidated as thereby to become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Council may order the owner at his option either to take down or to repair such building (in this section referred to as a "neglected structure") or any part thereof or otherwise to put the same or any part thereof into a state of repair and good condition to the satisfaction of the Council within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed the Council may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the order directs the taking down of a neglected structure or any part thereof the Council in executing the order may remove the materials to a convenient place and (unless the expenses of the Council under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Council under this section in relation to a neglected structure may be

deducted by the Council out of the proceeds of the sale and the surplus (if any) shall be paid by the Council on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Council or if the proceeds of the sale are insufficient to defray the said expenses the Council may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repair. A.D. 1929.

67.—(1) In the case of any building within the district which may appear to the Council on the report of any duly qualified officer to be dangerous to the inmates or persons working therein the Council may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the clerk at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary enter upon such building and examine and inspect the same. As to dangerous buildings.

(2) If upon such examination and inspection it shall appear necessary that any works should be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Council in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Council with respect to dangerous structures.

68. The power given by subsection (4) of section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the Public Health Acts Amendment Act 1890 to make byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws and with respect to the submission of such plans and sections as can be required in relation to the erection of a new building. Byelaws as to alterations of buildings.

A.D. 1929.

—
Amendment and
application of
section 17 of
Public Health
Acts Amendment
Act 1907.

69. Section 17 (Power to vary position or direction and to fix beginning and end of new streets) of the Public Health Acts Amendment Act 1907 shall in its application to the district be read and have effect as if subsection (2) of the said section were omitted therefrom.

Combined
drains.

70.—(1) If it appears to the Council that two or more houses within the district may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owner or owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners subject to a right of appeal under subsection (4) of this section.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person aggrieved by the amount of any costs and expenses proposed to be recovered by the Council under this section or the amount to be borne and paid by him may appeal to a court of summary jurisdiction provided that such appeal be made within two months from the date of the service of notice by the Council intimating the amount payable or their apportionment thereof. On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner

and by such parties to the appeal as the court may direct. A.D. 1929.

71. If any person cause any drain watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds :

Wilful
damage
to drains
water-
closets &c.

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

72.—(1) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the district without the previous approval of the Council.

Prohibi-
tion of
tents vans
&c.

(2) It shall not be lawful for any person without the previous consent of the Council to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Council.

(3) Any person aggrieved by the withholding by the Council of any approval or consent under the provisions of this section may within twenty-one days from the date of the decision of the Council appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(4) This section shall not apply to (a) a tent van shed or similar structure which is not used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder not being a pedlar or hawker.

A.D. 1929.

(5) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Exemption
for railway
companies.

73. Nothing in this Part of this Act except the sections whereof the marginal notes are—

“As to hoardings and similar structures”;

“Restriction on erection of temporary stands &c.”;

“Dilapidated and neglected buildings”;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or land is used or held by such company primarily for railway purposes.

For pro-
tection of
Merioneth
County
Council.

74. The provisions of section 33 (Opening of ground by persons liable to maintain pipes &c.) section 53 (Adjustment of boundaries of streets) section 56 (Further powers as to future line of streets) section 57 (Building line in streets) section 59 (As to execution of retaining walls) section 61 (Fire plugs) shall not in any way diminish prejudice or affect any of the rights or powers vested or to be vested in the county council. If any dispute difference or question shall arise between the Council and the county council touching any of the matters in the sections in this section mentioned the same shall be settled by the decision of a single arbitrator to be appointed on the application of either party by the Minister of the Government department having jurisdiction over the subject matter in dispute.

PART VII.

INFECTIOUS DISEASE AND SANITARY.

Definitions
for purposes
of this Part
of Act.

75. For the purposes of the section of this Act of which the marginal note is “Information to be furnished in case of infectious disease” the expression “infectious disease” includes in addition to the diseases referred to in the section of this Act of which the marginal note is

“ Interpretation of terms ” measles german measles A.D. 1929.
 whooping cough chicken-pox scabies ringworm and —
 influenza.

76.—(1) The occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Informa-
 tion to be
 furnished
 in case of
 infectious
 disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression “ occupier ” shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

77.—(1) If the owner of any dwelling-house or premises occupied therewith within the district represents to the Council that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Council duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Council or a committee of the Council are satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879.

As to filthy
 premises.

(2) Any expenses incurred by the Council under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

78.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by section 44 of the Public Health

Discon-
 tinuance of
 offensive
 trade.

A.D. 1929. — Act 1925 and in the opinion of the Council it is inexpedient in the interests of public health or having regard to any change since the date of the establishment of such offensive trade in the character of the neighbourhood in which such premises are situate that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Council under the hand of the clerk to cease to use such premises for the carrying on of such offensive trade :

Provided that the formation or expression by the Council of an opinion under this subsection shall be deemed to be a determination of the Council within the meaning of the section of this Act of which the marginal note is "As to appeals" and that the provisions of the said section of this Act shall accordingly apply with respect to such opinion as well as to any requirement by the Council under this subsection.

(2) Any person who fails or neglects to comply with any requirement of the Council under the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Council require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person compensation for any loss sustained by him in consequence of the action of the Council. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Council shall have been given for a period only unless the Council shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Council with reference to offensive trades.

Registra-
tion of
premises
used for
preparation
of potted
and pre-
served foods.

79.—(1) Any premises within the district used or proposed to be used for the preparation or manufacture of potted pressed pickled or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Council from time to time and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. A.D. 1929.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

80. When the medical officer certifies in writing that any dwelling-house is in an insanitary condition and that the occupier thereof is unable through infirmity or mental incapacity to remedy such condition and that his health is thereby endangered a court of summary jurisdiction may on the application of the Council (who shall give to the occupier seven days' notice of their intention to make such application) make an order for the removal of such occupier to an institution or other dwelling for such period as the court may by such order direct as being necessary to enable the Council to cleanse and disinfect the dwelling-house and the Council may carry out the removal and such cleansing and disinfection of the dwelling-house as may be necessary. Cleansing of dwelling-houses in certain cases.

PART VIII.

FINANCE.

81. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such expenses as are to be paid out of borrowed money) shall be paid out of the general rate fund and the general rate. Expense of execution of Act.

82.—(1) The Council may from time to time independently of and in addition to any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Council and they shall pay off all moneys so borrowed within the respective periods mentioned in Power to borrow.

A.D. 1929. — the third column of the said table which shall be deemed to be the prescribed periods for the purposes of the enactments applied by this Act (namely):—

1	2	3
Purpose.	Amount.	Period of Repayment.
(a) For the construction of Work No. 1.	£ 20,600	Thirty years from the date or dates of borrowing.
(b) For the purchase of land for Work No. 2.	500	Sixty years from the date or dates of borrowing.
(c) For the construction of Work No. 2.	19,500	Thirty years from the date or dates of borrowing.
(d) For the purchase of land for Work No. 3.	300	Sixty years from the date or dates of borrowing.
(e) For the construction of Work No. 3.	49,700	Thirty years from the date or dates of borrowing.
(f) For the purchase of land for Work No. 4.	900	Sixty years from the date or dates of borrowing.
(g) For the construction of Work No. 4.	46,800	Thirty years from the date or dates of borrowing.
(h) For paying the costs charges and expenses of obtaining this Act as hereunder defined.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Council may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of Part IV (Acquisition of harbour undertaking) of this Act and may with the consent of the Electricity Commissioners borrow such further money as may be necessary for any of the purposes of Part V (Electricity) of this Act and may with the consent of the Minister borrow such further money as may be necessary for any of the other purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period

for the purposes of this Act and the enactments incorporated therewith or applied thereby. A.D. 1929.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Council may mortgage or charge such revenue fund or rate as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

83. The following sections of the Barmouth Local Board Act 1891 shall extend and apply to the moneys borrowed under and to the purposes of this Act as if those provisions were with all necessary modifications re-enacted (namely) :—

Applica-
tion of
sections of
Act of
1891 as to
borrowing.

Section 59 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 60 (Certain regulations of Public Health Acts as to borrowing not to apply);

Section 61 (Application of money borrowed);

Section 68 (Protection of lenders from inquiry);

Section 69 (Local Board not to regard trusts).

84. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing.

Mode of
payment
off of
money
borrowed.

85.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) such sinking fund shall be formed or maintained either—

Sinking
fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

A.D. 1929.

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the payment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which

the annual payments to the fund are based any such excess may be applied towards such annual payments. A.D. 1929.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Council shall increase the payments to such extent as the Minister may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Council may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

A.D. 1929.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Minister may determine.

(12) All moneys which at the date of the passing of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Return to
Minister of
Health
with respect
to repay-
ment of
debts.

86.—(1) The clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the

amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Council shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. A.D. 1929.

PART IX.

MISCELLANEOUS.

87. Subject to the provisions of this Act and without prejudice to the provisions of that section of this Act of which the marginal note is "Crown rights" any person who at any time digs carries away or removes any sand gravel shingle rock soil or other material from the sea-shore in front of any of the works by this Act authorised without having first obtained the licence in writing of the Council or who having obtained such licence digs carries away or removes any sand gravel shingle rock soil or other material from any part of the sea-shore mentioned in this section or in any quantity or manner other than the part quantity or manner permitted by such licence shall for every such offence be liable to a penalty not exceeding twenty pounds. Sand &c. not to be removed from sea-shore without licence of Council.

88. The Council may in the district establish and maintain an information bureau or information bureaux for the purpose of supplying such information with regard to the district as may be desired by visitors or intending visitors to the district and others or may subscribe towards the establishment and maintenance of any such bureau and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof. Power to establish information bureaux.

89.—(1) No person shall in the streets hereinafter mentioned or within fifty yards thereof or on the seashore or beach importune any person by touting for a hotel lodging house refreshment house shop pier boat garden hackney carriage theatre or any place of amusement nor without the consent in writing of the Council hawk sell or offer for sale any article or commodity Provided that the provisions of this section shall not apply to the Prohibition of touting hawking &c. in certain streets and seashore.

A.D. 1929. — sale of newspapers and periodicals and provided that such consent shall not be necessary in the case of the selling or offering for sale of any articles or commodities at or on any booth stall or other erection lawfully placed on the seashore or beach.

(2) Any person offending against the provisions of this section shall be liable for the first offence to a penalty not exceeding forty shillings and for every subsequent offence to a penalty not exceeding five pounds.

(3) If the Council refuse their consent to the hawking selling or offering for sale of any article or commodity under this section any person aggrieved by such refusal may appeal to a petty sessional court provided that such appeal is made within fourteen days from the date on which such refusal is notified to him and that notice in writing of such appeal is sent to the Council not less than seven days before the hearing thereof and the court may make such order as it thinks fit and may award costs.

(4) The streets hereinbefore referred to are the following :—

Beach Road so much of the main road as lies between
Hendre Hall and Orielson Hall and Marine Parade.

In execut-
ing works
in default
of owner
or occupier
no liability
for dama-
ges to be
incurred
except in
case of
negligence.

90. Whenever the Council or the surveyor under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Evidence
of appoint-
ments
authority
&c.

91. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or any committee of the Council under this Act or under any general or local

Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the clerk shall be primâ facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1929.

92. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of the provisions of Parts VI and VII of this Act as if those purposes had been mentioned in the said section 102. Power of entry.

93. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. Breach of conditions of consent of Council.

94. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Apportionment of expenses in case of joint owners.

95. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted. Damages and charges to be settled by court.

A.D. 1929.

—
Recovery of
demands.

96. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

As to
appeals.

97. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council under the provisions of Parts VI or VII of this Act or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Council may in like manner appeal.

Several
sums in one
summons.

98. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the district any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Informa-
tions by
whom to be
laid.

99. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Recovery
of penalties
&c.

100. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Inquiries
by Minister
of Health.

101.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and

A.D. 1929.

—
 Crown
 rights.

107. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown
 minerals.

108. Notwithstanding the provisions contained in the section of this Act of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to His Majesty in right of His Crown under or adjacent to lands and works of the Council authorised to be taken or constructed by this Act.

Provision
 against
 danger to
 navigation.

109.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Council shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to the corporation for directions as to the means to be taken.

(2) If the Council fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Abatement
 of work
 abandoned
 or decayed.

110.—(1) Where any work constructed by the Council under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea

or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Council at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper. A.D. 1929.
 —

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Council they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

111. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Council under the powers of this Act which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Council shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt. Survey of works by Board of Trade.

112.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters Works below high-water mark

A.D. 1929.
—
to be
subject to
approval
of Board of
Trade.

or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Costs of
Act.

113. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1929.

FIRST SCHEDULE.

The district and so much of the townships of Llanaber-is-Mynydd and Llanaber-uwch-Mynydd in the parish of Llanaber in the county of Merioneth as is within the water limits of the Council as defined by section 5 of the Barmouth Local Board Act 1891.

SECOND SCHEDULE.

The county main road (leading from Dyffryn to Dolgelley) from a point opposite to Cil Mynach to a point opposite Brynhwyd Barmouth.

County main road known as Beach Road extending from King Edward Street to Great Western Railway crossing in Beach Road Barmouth.

The Marine Parade.

THIRD SCHEDULE.

Roads and streets—

County main road from the point where it enters the northern boundary of the Council's water limits as defined by the Barmouth Local Board Act 1891 to the point where it passes through the southern boundary of such water limits containing the following Llanaber Road Kings Crescent King Edward Street High Street Church Street Porkington Hill Porkington Terrace Orierton Hall Road Borthwen Terrace Aberamffra Dolgelley Road.

Beach Road.

Min-y-Mor Road.

Princes Avenue.

A.D. 1929.

Brynmynach Road.
Road through Memorial Park.
Northfield Road.
North Avenue.
Cellfechan Road.
St. John's Church Road.
Corsygedol Hotel Road.
Road to Pen-y-Cei and Sandy Creek.
Dinas Oleu Road.
Orielson Hall Estate Road forming a loop with Panorama.
Orielson Hall Estate Road connecting the last-mentioned road with Panorama Road.

Railways—

The following level crossing over the Great Western Railway viz. :—

Between Beach Road and Marine Parade.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION I.

Where the Council charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

(a) In respect of the quarters ending thirty-first March and thirty-first December—

For any amount up to fifteen units twelve shillings and sixpence and for each unit over fifteen units tenpence.

(b) In respect of the quarters ending thirtieth June and thirtieth September—

For any amount up to ten units eight shillings and fourpence and for each unit over ten units tenpence.

SECTION II.

A.D. 1929.

Where the Council charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in Section I of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Council under the regulations of the Electricity Commissioners.

FIFTH SCHEDULE.

PART I.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of Cardigan Bay and the northern boundary an imaginary line drawn from the south end of Min-y-Mor sea wall to the northern boundary of the Barmouth County School property and extending from the foreshore to a point on Marine Road being the north-east corner of the Barmouth County School boundary the eastern boundary is the western side of Marine Road extending from the north-east boundary of the Barmouth County School to the north-eastern corner of North Avenue The southern boundary is the north side of North Avenue extending from Marine Road to the foreshore of Cardigan Bay.

PART II.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of Cardigan Bay and the northern boundary is the northern boundary of the recreation ground extending from the foreshore to the western side of the northern continuation of Recreation Road thence following in a straight imaginary line to the centre of Hendre Mynach Stream and eastwards along the stream to its intersection with the western boundary fence of the Great Western Railway the eastern boundary is the western boundary of the Great Western Railway Company's property extending from the point at which it crosses Hendre Mynach Stream and running in a southerly direction for about one hundred and ten yards thence following the railway company's boundary and an imaginary line to the west side of Recreation Road following along the western side of Recreation Road Wellington Terrace and Marine Road to the north-east corner of the County School

A.D. 1929. boundary the southern boundary is an imaginary straight line drawn from the north-eastern corner of Barmouth County School boundary to the south end of Min-y-Mor sea wall and extending from Marine Road to the foreshore of Cardigan Bay being the termination of Work No. 1.

PART III.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of Cardigan Bay the northern boundary is the northern boundary of the district extending from the foreshore to the eastern boundary of the Great Western Railway the eastern boundary is the eastern boundary of the railway extending from the Council's northern boundary to the point at which Hendre Mynach Stream crosses the Great Western Railway Company's eastern boundary the southern boundary is the line of Hendre Mynach Stream extending from the eastern boundary fence to the western boundary fence of the railway company thence following the western boundary of the railway company in a southerly direction for about six yards thence along the centre line of the stream to a point in line with the northern boundary of the recreation ground thence along an imaginary line to the north-east corner of the recreation ground and thence along the northern boundary of the recreation ground to the foreshore of Cardigan Bay being the termination of Work No. 2.

PART IV.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of Cardigan Bay and the northern boundary is that of the property owned by the Barmouth Pavilion Company Limited the eastern boundary is the west side of Marine Parade extending from a point about seventy yards north of the north side of a block of shops known as Pavilion Shops and continuing southward to the south-eastern boundary of the Council's public lavatories thence following an imaginary line to the northern end of the sloping sea wall belonging to the Great Western Railway Company and following in a southerly direction along the western side of the wall for a distance of about one hundred and thirty yards and thence continuing in a straight line southward for a further distance of about two hundred and eighty yards to a point about sixty yards north-east of the Bath House The southern boundary extends from the last point to the north-western side of the house known as "Pen-y-Cei."

SIXTH SCHEDULE.

A.D. 1929.

I.—RATES ON VESSELS USING THE HARBOUR.

	£	s.	d.
For every vessel not exceeding the burden of 15 tons			
per ton	0	0	4
For every vessel exceeding the burden of 15 tons and under 50 tons - - - - - per ton register	0	0	6
For every vessel of the burden of 50 tons and under 100 tons - - - - - per ton register	0	0	8
For every vessel of the burden of 100 tons and under 150 tons - - - - - per ton register	0	0	10
For every vessel of the burden of 150 tons and upwards per ton register	0	1	0
All lighters for each trip - - - - -	0	0	6
All boats entirely open landing or taking on board goods - - - - - each	0	0	6

II.—RATES FOR GOODS ANIMALS &C. SHIPPED OR UNSHIPED AT THE HARBOUR.

	£	s.	d.
Light goods - - - - - per cubic foot	0	0	1
Heavy goods - - - - - per ton	0	2	0
(In charging the rates on goods the gross weight or measurement of all goods to be taken and for any less weights measures and quantities than those above specified a proportion of the respective rates shall be charged.)			
Horses - - - - - each	0	1	6
Asses mules bulls cows and oxen - - - - - each	0	1	0
Calves sheep and pigs - - - - - each	0	0	3
Lambs dogs and other small animals - - - - - each	0	0	2
For every four-wheeled carriage - - - - -	0	4	0
For every two-wheeled carriage - - - - -	0	2	6
For every bicycle or tricycle for each and every time	0	0	3
For every motor car - - - - -	0	5	0
For every motor bicycle or tricycle - - - - -	0	2	6

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of Acts of Parliament.

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